

Steps for answering tort fact pattern

- Check who can sue and who can be sued
- Determine what is the type of interference
- Check if the interference with the land is both substantial and unreasonable
 - o Even if you think that a claim would be invalidated on one of the 2 conditions, **STILL ANALYZE THE CLAIM AGAINST THE OTHER CONDITION TO**
 - o For unreasonable test check:
 - Character of harm
 - Character of neighbourhood
 - Intensity of interference
 - Duration of interference
 - Timing of interference
 - Utility of defendant's conduct
 - Nature of defendant's conduct
- Check defences – **EVEN IF THE CLAIM IS DETERMINED TO BE DISMISSABLE**
- Check remedies – **EVEN IF THE CLAIM IS DETERMINED TO BE DISMISSABLE**
 - o Consider *Coventry* test to determine what type of remedy is available

Facts:

- Dov creates smells that causes migraines for Walter, Walter is more sensitive to smells because of a concussion he suffered a few years ago
- Cows attracted to nearby hog farm cause multiple problems such as loud cawing (although not at night), leave droppings that cause a mess, and have nested in the boys treehouse so it is no longer usable
- Michelle is going to build a home that will block sunlight and make it impossible to grow vegetables for the Walters

Issues:

- Who can sue and who can be sued?
- Does Walter have a cause for action against Dov for the smells?
- Does Walter have a cause for action against the hog farm because of the crows that came from the farm?
- Does Walter have a cause for action against Michelle for rendering the garden unusable?

Rules:

- Use the legal test for private nuisance for all 3 situations against the White property

- Substantial interference -> “substantially alters the nature of the plaintiff’s property or significantly interferes with the use of it” (*Antrim Truck*, at para 22)
- Unreasonable interference -> check the conditions, must not be trivial
- According to *Rogers v Elliot* the courts must determine the impact of an action based on how the general public is affected, not niche cases
- According to *Appleby v Erie Tobacco Co*, there are certain reasonable expectations that residents of certain areas can expect to bear based on the location of their residence but not to the point passed what is reasonable
- According to *Fountainebleau v Forty-five twenty-five, inc* the courts ruled that the maxim *sic utere tuo ut alienum non laedas* doesn’t apply in cases where there is any reasonable use of land that doesn’t impede on a right to enjoyment of property that is recognized and protected by law

Analysis:

1. Who can sue? Who can be sued?
 - a. White’s can sue since they have possessory rights
 - b. Dov, Hogfarm owner, and Michelle can be sued
2. What is the type of interference
 - a. Dov – Interference with intrusion (smell is coming onto the land)
 - b. Hogfarm – Physical damage without intrusion as well
 - c. Michelle – Interference with amenity
3. Check if each interference is substantial and unreasonable?
 - a. Dov
 - i. Is the interference substantial for an ordinary citizens perspective? – The interference is not substantial because *Rogers v Elliot* provides a rule that “minor, transitory, trivial, or trifling” interferences do not qualify
 - ii. Is the interference unreasonable based on the criteria?
 - a. Character of Interference: Interference to amenity
 - b. Character of Neighbourhood: Farmland where growing and development of crops is to be expected
 - c. Intensity of Interference: Walter is not considered to be an ordinary citizen, therefore we look to the rest of the neighbourhood where no one else has been so bothered as to submit a complaint
 - d. Duration of Interference: Temporary
 - e. Timing of Interference: 1-2 days a week

- f. Utility of defendant's conduct: The small business contributes to local economy
- g. Nature of defendant's conduct: No malice, business is adhering to all local by-laws

b. Hogfarm

- i. Substantial – There is a substantial interference
- ii. Unreasonable check
 - a. Character of Interference:
 - b. Character of Neighbourhood:
 - c. Intensity of Interference:
 - d. Duration of Interference:
 - e. Timing of Interference:
 - f. Utility of defendant's conduct:
 - g. Nature of defendant's conduct:

c. Michelle

- i. Substantial – No, *Fontainebleau* case shows that there is no right to free flow of light/air from adjacent buildings, the legal maxim doesn't apply since the right to grow a garden is **not a protected legal right**
- ii. Unreasonable check
 - a. Character of Interference:
 - b. Character of Neighbourhood:
 - c. Intensity of Interference:
 - d. Duration of Interference:
 - e. Timing of Interference:
 - f. Utility of defendant's conduct:
 - g. Nature of defendant's conduct:

4. Defences:

- a. Dov – No defence available
- b. Hogfarm – Defence of statutory immunity
- c. Michelle – No defence

5. Remedies:

- a. Dov – An injunction could be put in place that forces Dov to install a fumehood or other mechanism to reduce the smell
- b. Hogfarm –
- c. Michelle –
- Regarding each issue Walter is facing first apply the legal test for private nuisance to make sure that each issue is actionable

- Regarding Dov, there is substantial interference because he is suffering from a migraine, but the condition of the interference being unreasonable is not achieved
 - o *Rogers v Elliot* showed that those with a particular sensitivity to stimulus cannot bring forth actions if the stimulus is not also causing harm to the general public
 - o The question becomes if there are other people bothered to the point of filing a private nuisance
- Regarding the hog farm, sustainable interference can be considered to be achieved since there was a damage to the land via intrusion, the rule found in *Appleby v Erie Tobacco Co* doesn't apply since this is past what a reasonable person is expected to tolerate given the circumstances surrounding his residence. However, if there is statutory immunity present for the hogfarm, then there is no cause of action that can be brought against it, the ability of Walter to bring forth an action will depend on the presence of statutory immunity.
- Regarding Michelle's construction, based on *Fontainebleau*, the relevant maxim doesn't restrict Michelle's construction since she is not violating any rights afforded to Walter regarding his land, any resolution to this dispute would have to arise through planning and zoning ordinances and not a change in the universally applied legal maxim

Conclusion:

- Walter has cause of action against the hog farm owner because of a departure from what is reasonable to be expected relative to the living situation according to *Appleby v Erie Tobacco Co*, in which he can get damages since an injunction to prevent the crows presence could be more oppressive to the hog farm compared to paying damages
- Walter does not have a cause of action against Michelle or Dov based on the rulings found in *Fontainebleau* and *Rogers*, respectively